

Rais Ahmad v. U.P. Power Corporation Ltd. And 3 Others

Allahabad High Court · Division Bench · 22 October 2013 · Writ - C No. - 44425 of 2013 · **Writ petition disposed of; if the Corporation's section 378 Cr.P.C. application has been rejected, respondent no.2 shall reconsider the petitioner's application for supply of electrical energy strictly in accordance with the provisions applicable, by a reasoned order, preferably within four weeks of production of a certified copy; consequential actions thereafter**

HEADNOTE

Where a consumer acquitted of theft of electricity under section 135 of the Electricity Act, 2003 seeks restoration of supply, and the licensee has refused restoration on the footing that a criminal appeal against the acquittal is pending, the writ court will not itself restore the connection. If the Corporation's application under section 378 of the Code of Criminal Procedure has been rejected, the officer who refused restoration must reconsider the consumer's application for supply of electrical energy strictly in accordance with the provisions applicable, by a reasoned order, preferably within four weeks of production of a certified copy, with consequential action thereafter. The Court did not decide whether clause 8.2(x)(h) of the U.P. Electricity Supply Code, 2005 independently required restoration through the original meter, nor whether a pending appeal without stay would have justified continued disconnection.

FACTUAL SUMMARY

Rais Ahmad was prosecuted for alleged theft of electricity in Criminal Case No. 148 of 2008 under section 135 of the Electricity Act, 2003 (SST No. 85 of 2008). The trial court acquitted him on 21 October 2011. He applied for restoration of supply. The Executive Officer rejected that application on 10 July 2013, recording that Criminal Appeal No. 26 of 2012 (State v. Rais Ahmad) against the acquittal was pending. The petitioner said that recital was incorrect: the Corporation had only moved the High Court under section 378 of the Code of Criminal Procedure, and that application was rejected on 31 July 2012.

After listings on 22 and 30 August 2013, Vineet Saran and Manoj Kumar Gupta, JJ. on 4 September 2013 recorded the petitioner's invocation of clause 8.2(x)(h) of the U.P. Electricity Supply Code, 2005 and directed restoration within three weeks or a counter-affidavit. The matter was passed over on 3 October 2013. Arun Tandon and Anjani Kumar Mishra, JJ. disposed of the writ on 22 October 2013.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.2(x)

post-acquittal restoration — rejected s.378 leave application is not a pending appeal that ends the inquiry; restoration application to be reconsidered under the applicable provisions

QUESTION

Where the licensee has refused post-acquittal restoration on the ground that a criminal appeal is pending, and the consumer says only a section 378 Cr.P.C. leave application was filed and rejected, must the writ court restore supply?

HOLDING

No. The Court did not itself restore the connection. If the Corporation's application under section 378 Cr.P.C. has been rejected, respondent no.2 shall reconsider the petitioner's application for supply of electrical energy strictly in accordance with the provisions applicable, by a reasoned order, preferably within four weeks of production of a certified copy. All consequential actions shall be taken thereafter. The writ petition is disposed of. ¶ order of 22.10.2013

QUALIFIER

The direction is conditional on the section 378 application having been rejected; the Court did not find as a fact that Criminal Appeal No. 26 of 2012 was or was not pending.

FLAG Source PDF concatenates listing orders of 22.8.2013 (Sunil Ambwani and Surya Prakash Kesarwani, JJ.), 30.8.2013, 4.9.2013 and 3.10.2013 (Vineet Saran and Manoj Kumar Gupta, JJ.) with this 22.10.2013 disposal. The 4.9.2013 order recorded clause 8.2(x)(h) (licensee liable to restore through the original meter even if an appeal is filed, absent stay) and directed restoration within three weeks or a show-cause; that was not the final disposal. The disposing bench did not cite 8.2(x)(h) and remitted reconsideration if the s.378 application had been rejected. Catalog parent UP-2005::8.2(x). The 22.10.2013 order is unnumbered.

PRINCIPLE TAGS

clause-8.2x-acquittal-requires-withdrawal-of-theft-assessment The consumer invoked clause 8.2(x)(h) of the 2005 Code for restoration through the original meter after acquittal under section 135. An earlier listing treated a pending appeal without stay as no bar. The disposing bench did not apply the clause on merits; it remitted reconsideration of the restoration application if the Corporation's section 378 Cr.P.C. leave application had been rejected.

¶ order of 4.9.2013, order of 22.10.2013

representation-to-be-decided-in-accordance-with-law The 10.07.2013 refusal of restoration was not quashed and supply was not restored in the writ. If the section 378 application has been rejected, respondent no.2 must reconsider the application for supply strictly in accordance with the provisions applicable, by a reasoned order, preferably within four weeks. ¶ order of 22.10.2013

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 8.2(X)(H) INDEPENDENTLY REQUIRED RESTORATION THROUGH THE ORIGINAL METER AFTER THE 21.10.2011 ACQUITTAL

Invoked on 4.9.2013 and treated there as requiring restoration even if an appeal is filed, absent stay. The disposing bench remitted reconsideration under the 'provisions applicable' without construing the clause.

¶ order of 4.9.2013, order of 22.10.2013

NOT DECIDED — WHETHER CRIMINAL APPEAL NO. 26 OF 2012 WAS PENDING, OR ONLY A SECTION 378 CR.P.C. APPLICATION HAD BEEN FILED AND REJECTED ON 31.07.2012

The Executive Officer's 10.07.2013 order recited a pending appeal. The petitioner said that recital was incorrect. The Court conditioned relief on 'if' the 378 application has been rejected. ¶ order of 22.10.2013

NOT DECIDED — WHETHER A PENDING APPEAL AGAINST ACQUITTAL, WITHOUT A STAY, WOULD ITSELF JUSTIFY CONTINUED DISCONNECTION

The 4.9.2013 listing said no; the disposing bench did not decide that question. ¶ order of 4.9.2013, order of 22.10.2013